

23STCV04360 23STCV04360

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-07-31

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C408%2C07%2F31%2F2026

Source SHA-256: 39e40aca71a642af888abdec4008a8dc12002078fd9feaca8bf6de515355cf5c

Case Number: 23STCV04360 Hearing Date: July 31, 2026 Dept: 408

Defendants County of Los

Angeles and Aram Derderian's Motion for Summary Judgment, or in the alternative, Summary Adjudication is DENIED.

I.

BACKGROUND

On February 27, 2023, Plaintiff Birch Wellington Pender ("Plaintiff") filed a complaint against Defendant County of Los Angeles ("County") alleging causes of action for:

1. Battery;
2. Negligent Hiring, Training, and Supervision;
3. Negligence; and
4. Violation of Tom Bane Civil Rights Act (Civ. Code § 52.1).

On May 4, 2023, the County filed an answer to Plaintiff's complaint.

On August 4, 2023, Plaintiff filed an Amendment to the Complaint naming Doe 1 as Aram Derderian ("Derderian").

On September 28, 2023, Derderian filed an answer to Plaintiff's

complaint.

On October 16, 2023, Derderian filed a First Amended Answer to Plaintiff's complaint.

On December 4, 2023, the court granted in part and denied in part Plaintiff's Motion for Discovery of Personnel Records and Other Materials.

On April 24, 2025, the County and Derderian ("Defendants") filed this Motion for Summary Judgment, or in the alternative, Summary Adjudication. On November 5, 2025, Plaintiff filed an opposition. On May 26, 2026, Defendants filed a reply. On June 4, 2026, Plaintiff filed a sur-reply.

II.

LEGAL STANDARD

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. The motion may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct." (Code Civ. Proc., § 437c, subd. (1)(a).)

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of fact and that he is entitled to judgment as a matter of law. That is because of the general principle that a party who seeks a court's action in his favor bears the burden of persuasion thereon. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 850 [citation omitted].)

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the reexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie

showing of the existence of a triable issue of material fact.” (Aguilar, supra, 25 Cal.4th at 850; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [applying the summary judgment standards in Aguilar to motions for summary adjudication].)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [citation omitted].)

“The trial court may not weigh the evidence in the manner of a fact finder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court's evaluation of credibility.” (Binder, supra, 75 Cal.App.4th at 840 [citations omitted]; see also Weiss v. People ex rel. Dep't of Transp. (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

III.

DISCUSSION

Defendants seek summary judgment on the first through fourth causes of action, except the third cause of action for negligence as to the County, alleged in Plaintiff's complaint on the grounds that the undisputed facts of this case establish that Defendants acted reasonably at all times, without any specific intent to cause harm or deprive Plaintiff of any Constitutional right.

A. Evidentiary

Objections

The court declines to rule on the evidentiary objections submitted, pursuant to Code of Civil Procedure section 437c(q) (i.e., “[i]n granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to

evidence that it deems material to its disposition of the motion"). (Code Civ. Proc., § 437c, subd. (q).)

B.

Notice and Separate Statement

As an initial

matter, the court notes that Defendants do not seek summary judgment on the negligence cause of action asserted in Plaintiff's complaint as to the County. (MSJ, at pp. 3-4.) As such, Defendants' motion can only be considered one for summary adjudication. (Code Civ. Proc., § 437c, subd. (1)(a) ["A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding."].) Moreover, Defendants explicitly seek summary adjudication in the alternative. (MSJ, at pp. 3-4.)

California Rules of

Court, rule 3.1350(b) provides that "[i]f summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." (Cal.

Rules of Court, rule 3.1350, subd. (b) [emphasis added]; see also *Hypertouch, Inc. v. ValueClick, Inc.* (2011) 192 Cal.App.4th 805, 834 ["A summary

judgment may be granted only where it is shown that the entire 'action' 'has no merit.' "].)

Rule 3.1350(d)(1)(A)

provides that the separate statement of undisputed material facts in support of a motion must separately identify each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion. (Cal. Rules of Court, rule 3.1350, subd. (d)(1)(A).)

Defendants' notice

and separate statement fails to follow the requirements necessary to summarily adjudicate the causes of action listed and does not present any specific issues to be adjudicated. "Where a remedy as drastic as summary judgment is involved, due process requires a party be fully advised of the issues to be addressed and be given adequate notice of what facts it must rebut in order to prevail." (San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A. (2002) 102 Cal.App.4th

308, 316.) As such, the court cannot rule on the summary adjudication motion.

Accordingly, the motion is denied.[1]

IV.

CONCLUSION

Defendants

County of Los Angeles and Aram Derderian's Motion for Summary Judgment, or in the alternative, Summary Adjudication is DEN

[1] Even

if the motion complied with the requirements described, the court finds that the motion would be denied as to the third cause of action for negligence against Derderian and first cause of action for battery against Defendants. Throughout the moving papers, Defendants argue that no triable issue of fact exists on whether Derderian's conduct was reasonable based on the declaration of Defendants' expert, Debbie Eglin. (MSJ, at pp. 6-8; 12-14.) The court notes that Plaintiff provides disputing expert testimony from Roger A. Clark in opposition demonstrating that a triable issue as to the purported reasonableness of Derderian's conduct. (Opp., at pp. 10-11; Garrett v. Howmedica Osteonics Corp. (2013) 214 Cal.App.4th 173, 189 ["The rule that a trial court must liberally construe the evidence submitted in opposition to a summary judgment motion applies in ruling on both the admissibility of expert testimony and its sufficiency to create a triable issue of fact."].) The court would not have found that Defendants carried their initial burden establishing that the first and third causes of action fail based on such evidence.

Nevertheless, the court would

have been inclined to grant summary adjudication as to the second cause of action for negligent hiring, training, and supervisions and fourth cause of action for violation of the Tom Bane Civil Rights Act. As to the second cause of action, there is not statutory basis for negligent hiring, training, and supervision against a public entity. (de Villers v. City of San Diego (2007) 156 Cal.App.4th 238, 252-253 ["We find no relevant case law approving a claim for direct liability based on a public entity's allegedly negligent hiring and supervision practices."]; Munoz v. City of Union City (2004) 120 Cal.App.4th 1077, 1110-1115.) Plaintiff's attempt to impose liability for the

County's alleged negligent hiring and supervision practices under Government Code sections 815.6 and 7286(b) is unpersuasive. (Opp., at pp. 17-20.) Moreover, "[t]he essence of a Bane Act claim is that the defendant, by the specified improper means (i.e., 'threat[]', intimidation or coercion'), tried to or did prevent the plaintiff from doing something he or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to do under the law." (King v. State of Cal. (2015) 242 Cal.App.4th 265, 294; Austin B. v. Escondido Union School Dist. (2007) 149 Cal.App.4th 860, 883.) As to the fourth cause of action, the court could find that Defendants carried their initial burden to demonstrate that such claim fails as Plaintiff cannot establish that there was an underlying constitutional violation and Defendants' specific intent to violate his rights based on the undisputed facts presented, shifting the burden onto Plaintiff. (MSJ, at pp. 8-10.) The court further notes that Plaintiff failed to address Defendant's argument regarding such claim in the opposition and sur-reply. Accordingly, Plaintiff could not have carried their burden and summary adjudication would have been appropriate.